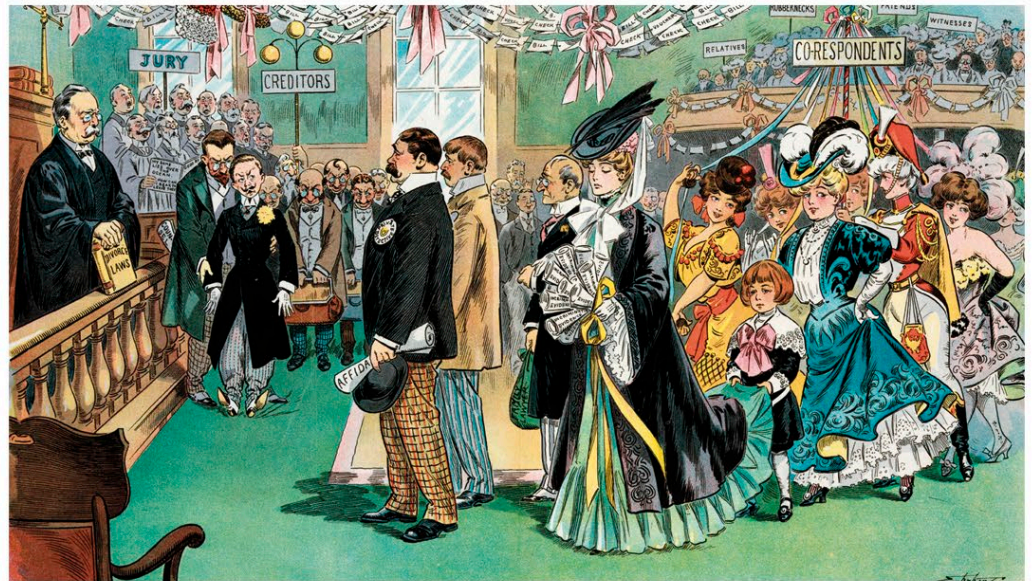


Nearly 50 years later, the UK and the state of California led a charge to liberalize divorce laws. In 1966, the Archbishop of Canterbury issued a report stating that traditional divorce law in England should be replaced with a law that focused on the state of the marriage rather than the behavior of the spouses. This led to the Divorce Reform Act of 1969, which kept the old fault system but also allowed divorce on the grounds of irretrievable breakdown. The same year California also introduced new divorce laws.

Transforming divorce law

Between 1969 and 1985, most Western countries radically altered divorce legislation. Some of the most notable changes appeared in Catholic majority countries like Spain and Italy, where civil divorce was introduced; or Portugal, where divorce was allowed for Catholic marriages for the first time. In the Netherlands, West Germany, Sweden, and 19 US states, fault grounds were entirely eliminated. Sweden was the most radical country of all, when, in 1973, it introduced a system that permitted either spouse to end a marriage without proving fault, obtaining the other spouse's consent, or having a long separation period. Legislation varied in non-Western countries and in multireligious states like India, the Judiciary implemented different laws for couples depending on their faith.

From 1960–1990, the divorce rate increased from 1 percent to 19 percent in the US. At the same time, the proportion of children who



lived with one parent jumped from 9 to 19 percent, and the percentage of teenage mothers who were not married increased from 15 to 68 percent. These figures reflected a growing deinstitutionalization of marriage, and a changing zeitgeist in which women felt more free to remain single, or to leave marriages in search of happiness. Some scholars even argued in the *Journal of Divorce* that the divorce revolution promoted “growth potential” for mothers, as they could enjoy more autonomy, feel in control of their lives, and improve their relationships with their children. Others disagreed, claiming that the revolution devastated women, who, once the dust settled, had to face the financial and social burden of raising their children alone with only limited child support.

▲ Public scandal

Before the 1980s, obtaining a divorce was difficult for women. This 1906 cartoon shows the circus-like divorce proceedings of American heiress Anna Gould, who held a handful of indictments against her husband, Boni de Castellane.

“I HAVE LEARNED THAT NOT DIAMONDS BUT DIVORCE LAWYERS ARE A GIRL’S BEST FRIEND.”

ZSA ZSA GABOR, HUNGARIAN-BORN ACTRESS AND SEVEN-TIME DIVORCÉE

